

1 ENGROSSED SENATE
2 BILL NO. 1991

By: Hall of the Senate

and

Caldwell (Trey) of the
House

3
4
5
6 An Act relating to the Long-Range Capital Planning
7 Commission; amending 61 O.S. 2021, Sections 309, 316,
8 317, 326, and 327, as amended by Sections 39, 42, 43,
9 46, and 47, Chapter 238, O.S.L. 2022 (61 O.S. Supp.
10 2025, Sections 309, 316, 317, 326, and 327), which
11 relate to state property; directing the monies
12 received from the sale of certain leases and
13 property, bonuses, royalties, and contracts to be
14 deposited in the Oklahoma Capital Assets Maintenance
15 and Protection Fund; amending 62 O.S. 2021, Sections
16 900, 901, as amended by Section 1, Chapter 439,
17 O.S.L. 2025, and 901.1 (62 O.S. Supp. 2025, Section
18 901), which relate to the State Capital Improvement
19 Planning Act; modifying application of short title;
20 transferring provisions from repealed section of
21 statutes; eliminating requirement to prepare certain
22 annual budget and capital plan; requiring the
23 Oklahoma State Regents for Higher Education and state
24 governmental entities to cooperate with the
Commission in preparation of five-year plans;
requiring the Office of Management and Enterprise
Services (OMES) to perform services in support of
five-year plans; prescribing allocation of monies
from the Oklahoma Capital Assets Maintenance and
Protection Fund for certain fiscal year; prescribing
additional requirements for five-year plans;
requiring submission of list of proposed projects
pursuant to five-year plans; authorizing OMES to
expend certain funds for certain projects;
authorizing redirection of certain funds for certain
emergency projects; amending 62 O.S. 2021, Section
908, as amended by Section 1, Chapter 188, O.S.L.
2023 (62 O.S. Supp. 2025, Section 908), which relates
to the Oklahoma State Government Asset Reduction and
Cost Savings Program; eliminating the Maintenance of
State Buildings Revolving Fund; amending Section 2,
Chapter 441, O.S.L. 2024, as amended by Section 3,

Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B), which relates to the Oklahoma Capital Assets Maintenance and Protection Fund; expanding sources of funds; modifying provisions for which the Oklahoma Capitol Improvement Authority is granted certain authorizations; modifying authorization to provide for construction of property; requiring interest and returns earned on deposits to the fund be deposited to the credit of the fund; amending 74 O.S. 2021, Section 61.8, as amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025, Section 61.8), which relates to the duties of the Commission; directing certain proceeds be deposited in the Oklahoma Capital Assets Maintenance and Protection Fund; modifying requirements for certain report; requiring the remaining balance of the Maintenance of State Buildings Revolving Fund to be transferred to the Oklahoma Capital Assets Maintenance and Protection Fund upon certain date; requiring electronic submission of certain reports; updating statutory language; updating statutory reference; clarifying statutory language; repealing Section 3, Chapter 441, O.S.L. 2024, as amended by Section 2, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188A), which relates to the Oklahoma Capital Assets Maintenance and Protection Act; providing for noncodification; providing for recodification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 61 O.S. 2021, Section 309, as amended by Section 39, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 309), is amended to read as follows:

Section 309. A. The Office of Management and Enterprise Services is hereby authorized ~~and empowered~~ to offer for sale and sell and execute and deliver oil and gas or mineral leases upon the lands described in Section 1 of Title 73 of the Oklahoma Statutes

1 under the control of ~~said~~ the Office of Management and Enterprise
2 Services. The Office of Management and Enterprise Services is
3 hereby authorized ~~and empowered~~ to enter into contracts with persons
4 or corporations for the drilling of oil and gas wells on any such
5 property owned by the state. No such lease or drilling contract
6 shall be entered into by ~~said~~ the Office of Management and
7 Enterprise Services which provides for the payment of a royalty to
8 ~~the State of Oklahoma~~ this state of less than one-eighth (1/8) of
9 all of the oil, gas, or casinghead gas produced, saved, and sold
10 from ~~said~~ such lands, plus cash bonus, of the royalty in ~~said~~ such
11 leases. ~~Such~~ The Office of Management and Enterprise Services shall
12 give notice of its intention to offer for sale ~~said~~ such lease or
13 drilling contract by advertising ~~said~~ such fact for a period of at
14 least twenty-one (21) days electronically on an authorized state
15 website and in a legal newspaper published and of general
16 circulation in the county where ~~said~~ such lands are located. The
17 Office of Management and Enterprise Services shall award such lease,
18 leases, or drilling contracts to the highest responsible bidder.
19 All bidding shall be by sealed written or electronic bids filed with
20 ~~said~~ the Office of Management and Enterprise Services.

21 B. All royalties, bonuses, and rentals accruing to the state
22 from any contracts or leases executed pursuant to the provisions of
23 subsection A of this section and all other monies received from the
24 sale of any such leases, bonuses, and royalties or other contracts

1 made by ~~said~~ the Office of Management and Enterprise Services shall
2 be credited to the ~~Maintenance of State Buildings Revolving Fund of~~
3 ~~the State of Oklahoma~~ Oklahoma Capital Assets Maintenance and
4 Protection Fund.

5 SECTION 2. AMENDATORY 61 O.S. 2021, Section 316, as
6 amended by Section 42, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
7 Section 316), is amended to read as follows:

8 Section 316. All proceeds derived from any royalty under such
9 leases or any bonus received from the sale of such leases shall be
10 paid into the ~~Maintenance of State Buildings Revolving Fund of the~~
11 ~~state~~ Oklahoma Capital Assets Maintenance and Protection Fund, but
12 this section shall not be a part of any contract with any lessee
13 hereunder.

14 SECTION 3. AMENDATORY 61 O.S. 2021, Section 317, as
15 amended by Section 43, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
16 Section 317), is amended to read as follows:

17 Section 317. A. The Office of Management and Enterprise
18 Services is hereby authorized ~~and empowered~~ to sell and execute oil
19 and gas leases, and other mining leases, on any of the lands of this
20 state under the control of ~~said~~ the Office of Management and
21 Enterprise Services. Sale of Oklahoma State Capitol lands or
22 parkways or the Executive Mansion lands shall be made upon a basis
23 of a retained royalty of not less than one-eighth (1/8) of all the
24 oil, gas, and other minerals produced therefrom, and such additional

1 cash bonus as may be procured. Such leases shall contain a
2 provision that in the event of the discovery of natural gas, gas
3 shall be furnished free of charge to any state institution located
4 or hereafter located upon the lands covered by ~~said~~ the lease, or
5 leases. ~~Said~~ Such leases shall be sold only after advertisement for
6 a period of three (3) weeks electronically on an authorized state
7 website and in a legal newspaper published and of general
8 circulation in the county in which ~~said~~ such lands are located. The
9 sale shall be made to the highest responsible bidder, and all bids
10 for any tract shall be presented to the Office of Management and
11 Enterprise Services electronically or in sealed envelopes, and shall
12 all be opened and considered at the same time. ~~Said~~ The Office of
13 Management and Enterprise Services shall have the right to reject
14 any and all of ~~said~~ the bids and again readvertise ~~said~~ such lease,
15 or leases, for sale.

16 B. The Office of Management and Enterprise Services is further
17 authorized to make and promulgate ~~such~~ additional rules and
18 regulations as he may deem necessary and for the best interest of
19 ~~the~~ this state in facilitating the sale of ~~said~~ such leases. The
20 Director may contract with other state agencies to implement the
21 provisions of this section and any expenses charged under such
22 contract may be paid from the proceeds of the lease.

23 C. All monies derived from the sale of any and all of ~~said~~ such
24 leases, and from any royalties subsequently accruing, after

1 deduction of the amount required to pay necessary and actual
2 expenses of developing the lease, shall be paid into the State
3 Treasury and credited to the ~~Maintenance of State Buildings~~
4 ~~Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection
5 Fund.

6 SECTION 4. AMENDATORY 61 O.S. 2021, Section 326, as
7 amended by Section 46, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
8 Section 326), is amended to read as follows:

9 Section 326. After payment of all costs incurred in the
10 inventory and appraisal and advertisement and costs of sale, the
11 remaining proceeds therefrom, and any monies derived from leasing
12 the property described in Section 324 of this title, shall be
13 deposited in the ~~Maintenance of State Buildings Revolving Fund~~
14 Oklahoma Capital Assets Maintenance and Protection Fund. The
15 leasing for oil and gas purposes of any such lands and the proceeds
16 therefrom shall be conducted and handled by the Office of Management
17 and Enterprise Services pursuant to Section 317 of this title.

18 SECTION 5. AMENDATORY 61 O.S. 2021, Section 327, as
19 amended by Section 47, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
20 Section 327), is amended to read as follows:

21 Section 327. A. Unless procedures for state agency real
22 property transactions are otherwise specifically provided for by
23 law, no state agency shall sell, lease, exchange, or otherwise
24 dispose of such real property subject to its jurisdiction, or lease,

1 purchase or otherwise acquire real property subject to its
2 jurisdiction, except as authorized by subsection L of this section
3 and as otherwise provided for in this section. As used in this
4 section, "state agency" means any department, board, commission,
5 institution, agency or entity of state government.

6 B. 1. Every state agency shall request the Office of
7 Management and Enterprise Services to dispose of real property upon:

- 8 a. legislative authorization,
- 9 b. authorization by the Long-Range Capital Planning
10 Commission, or
- 11 c. a determination, in writing, by the Office of
12 Management and Enterprise Services or the state agency
13 that a parcel of real property subject to its
14 jurisdiction is no longer needed.

15 2. Upon the request of the state agency to dispose of real
16 property, the Office of Management and Enterprise Services shall
17 estimate the value of the property, and:

- 18 a. for properties with an estimated value of greater than
19 Twenty-five Thousand Dollars (\$25,000.00), obtain at
20 least one complete appraisal made by a person
21 certified by the Real Estate Appraiser Board of the
22 Oklahoma Insurance Department, who shall ascertain:
23 (1) the present fair value of the property,
24

1 (2) the present value of the improvements on such
2 property, and

3 (3) the actual condition of the improvements on the
4 property,

5 b. after completion of the provisions of subsection L of
6 this section, cause notice of such sale to be
7 published for at least one (1) day in a newspaper of
8 general statewide circulation authorized to publish
9 legal notices, and weekly for three (3) consecutive
10 weeks in a newspaper of general circulation published
11 in the county or counties in which the property is
12 located. The notice shall contain the legal
13 description of each parcel of real property to be
14 offered for sale, the appraised value thereof, the
15 time and location of the sale or opening of the bids,
16 and terms of the sale including the fact that no
17 parcel of property shall be sold for less than ninety
18 percent (90%) of the appraised value of the real
19 property; provided, in lieu of such procedure, the
20 information may be published electronically on the
21 Office of Management and Enterprise Services' website
22 if the notice of sale and instructions on accessing
23 the public information are published in a newspaper of
24 general circulation in the county or counties in which

1 the property is located weekly for three (3)
2 consecutive weeks,

3 c. offer the property through electronic auction, public
4 auction or sealed bids within three (3) weeks after
5 the last publication of the notice. The property
6 shall be sold to the highest bidder. The Office of
7 Management and Enterprise Services shall not accept a
8 bid of less than ninety percent (90%) of the average
9 appraised fair value of the property and the
10 improvements on such property,

11 d. if the property is being disposed of in compliance
12 with Section 908 of Title 62 of the Oklahoma Statutes,
13 the Office of Management and Enterprise Services may
14 auction the property at public or electronic auction
15 provided proper public notice is given in compliance
16 with this section and the property has been approved
17 for liquidation by the Long-Range Capital Planning
18 Commission. The Office of Management and Enterprise
19 Services is authorized to reject all bids,

20 e. if the property has an estimated value of less than
21 Twenty-five Thousand Dollars (\$25,000.00), the Office
22 of Management and Enterprise Services may establish
23 the value through market comparison and may dispose of
24 the property based on estimated value without

1 obtaining a certified appraisal; provided, however,
2 the sale shall comply with all other requirements of
3 statute, and

4 f. if the property is landlocked, the Office of
5 Management and Enterprise Services may offer the
6 property through indirect sale to the adjacent
7 property owner for not less than ninety percent (90%)
8 of fair market value, as determined in compliance with
9 this section. All sales costs, including any required
10 surveys and appraisals, shall be at the expense of the
11 buyer.

12 3. The cost of the appraisal required by the provisions of this
13 section, together with other necessary expenses incurred pursuant to
14 this section, shall be paid by the state agency for which the real
15 property is to be sold from funds available to the state agency for
16 such expenditure. All monies received from the sale or disposal of
17 the property, except those monies necessary to pay the expenses
18 incurred pursuant to this section, shall be deposited in the
19 ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital
20 Assets Maintenance and Protection Fund unless otherwise provided by
21 law.

22 4. The Office of Management and Enterprise Services may dismiss
23 from consideration any appraisal found to be incomplete or flawed.
24

1 C. Unless otherwise provided by law, the Office of Management
2 and Enterprise Services shall review and approve state agency real
3 property transactions. A state agency shall not lease or acquire
4 real property, or lease, dispose of or transfer state-owned real
5 property until the Office of Management and Enterprise Services
6 provides notice of transaction approval to the state agency. Prior
7 to approval, a state agency shall provide documents to the Office of
8 Management and Enterprise Services and provide reference to
9 statutory or other legal authority of the state agency to lease or
10 acquire real property, or lease, dispose of or transfer state-owned
11 real property. If the state agency intends to lease or acquire real
12 property, the state agency shall state the intended use of the real
13 property, and shall provide the Office of Management and Enterprise
14 Services with required telework documentation. Within thirty (30)
15 days of receipt, the Office of Management and Enterprise Services
16 shall provide notice of transaction approval or disapproval to the
17 state agency.

18 D. The provisions of this section shall not apply to the lease
19 of office space or real property subject to supervision of the
20 Commissioners of the Land Office or district boards of education.

21 E. 1. The Office of Management and Enterprise Services shall
22 maintain a comprehensive inventory of state-owned real property and
23 its use excluding property of the public schools and property
24 subject to the jurisdiction of the Commissioners of the Land Office.

1 2. Each state agency shall, within thirty (30) days of the
2 closing date for lands newly acquired, provide to the Office of
3 Management and Enterprise Services a list of records, deeds,
4 abstracts and other title instruments showing the description of and
5 relating to any and all such lands or interests therein.

6 3. The provisions of paragraph 2 of this subsection shall apply
7 to all lands of public trusts having a state agency as the primary
8 beneficiary, but shall not apply to lands of municipalities,
9 counties, school districts, or agencies thereof, or Department of
10 Transportation rights-of-way.

11 4. A state agency that sells or otherwise disposes of land
12 shall notify the Office of Management and Enterprise Services within
13 thirty (30) days of the disposition closing date.

14 F. This section shall not be construed to authorize any state
15 agency, not otherwise authorized by law, to sell, lease, or
16 otherwise dispose of any real property owned by the state.

17 G. The Office of Management and Enterprise Services and the
18 Secretary of the Commissioners of the Land Office, or designee, as
19 provided in subsection L of this section may provide services to
20 sell, transfer, trade or purchase real property for other state
21 agencies.

22 H. The Director of the Office of Management and Enterprise
23 Services shall, pursuant to the Administrative Procedures Act,
24

1 promulgate rules to effect procedures necessary to the fulfillment
2 of its responsibilities under this section.

3 I. The Oklahoma Ordnance Works Authority and its lands, and the
4 Northeast Oklahoma Public Facilities Authority, the Oklahoma
5 Historical Society, the Oklahoma Department of Transportation, the
6 Oklahoma Turnpike Authority and the Department of Wildlife managed
7 lands shall be exempt from the application of this section. The
8 Grand River Dam Authority and its lands shall be exempt from the
9 application of this section for any real property disposed of prior
10 to November 1, 2006.

11 J. Unless otherwise provided for by law, the procedures
12 established pursuant to this section for the sale or exchange of
13 real estate or personal property as authorized pursuant to Sections
14 2222 and 2223 of Title 74 of the Oklahoma Statutes shall be followed
15 unless the sale is to an entity of state government.

16 K. The Director of the Office of Management and Enterprise
17 Services shall contract with experts, professionals or consultants
18 as necessary to perform the duties of the Office of Management and
19 Enterprise Services. Selections shall be made using the
20 qualifications-based procedures established in Section 62 of this
21 title and the rules promulgated by the Director for the selection of
22 construction managers and design consultants.

23 L. 1. No state agency shall sell, lease, exchange, or
24 otherwise dispose of such real property subject to its jurisdiction,

1 or lease, purchase or otherwise acquire real property subject to its
2 jurisdiction, until such agency or the Office of Management and
3 Enterprise Services acting on the agency's behalf has presented to
4 the Secretary of the Commissioners of the Land Office, or designee,
5 all information collected pursuant to subparagraph a of paragraph 2
6 of subsection B of this section, and provided the Secretary of the
7 Commissioners of the Land Office or designee a twenty-calendar-day
8 period to provide a proposal for the acquisition or disposal of
9 applicable real property.

10 2. The Secretary of the Commissioners of the Land Office or
11 designee may decline to provide such a proposal; provided such
12 notice of decline is communicated to the Office of Management and
13 Enterprise Services in written or electronic form. Upon the
14 reception of such notice of decline by the Office of Management and
15 Enterprise Services, the twenty-calendar-day period otherwise
16 required by this subsection shall be deemed to have expired.

17 SECTION 6. AMENDATORY 62 O.S. 2021, Section 900, is
18 amended to read as follows:

19 Section 900. Sections ~~4~~ 901 and ~~2~~ 901.1 of this ~~act~~ title and
20 Section 188B of Title 73 of the Oklahoma Statutes shall be known and
21 may be cited as the "State Capital Improvement Planning Act".

22 SECTION 7. AMENDATORY 62 O.S. 2021, Section 901, as
23 amended by Section 1, Chapter 439, O.S.L. 2025 (62 O.S. Supp. 2025,
24 Section 901), is amended to read as follows:

1 Section 901. A. There is hereby created a Long-Range Capital
2 Planning Commission to advise and assist the Legislature in
3 providing for real property capital facility needs for this state.
4 The Commission shall consist of nine (9) members as follows:

5 1. Three members appointed by the President Pro Tempore of the
6 Senate;

7 2. Three members appointed by the Speaker of the House of
8 Representatives; and

9 3. Three members appointed by the Governor.

10 All appointees shall be from the public at large. Within thirty
11 (30) days of July 1, 2013, the appointing authorities shall appoint
12 new members to the Commission; provided, a member serving on July 1,
13 2013, may be reappointed if he or she is otherwise qualified. Of
14 the members initially appointed by each appointing authority after
15 July 1, 2013, one shall be appointed for a one-year term, one shall
16 be appointed for a two-year term and one shall be appointed for a
17 three-year term. Thereafter, their successors shall be appointed
18 for four-year terms. Any vacancy shall be filled for the remainder
19 of the unexpired term in the same manner as the original
20 appointment. The appointing authorities shall appoint members who
21 possess knowledge, skills and abilities to perform the duties of the
22 Commission. No member of the Commission shall be interested,
23 directly or indirectly, in any contract entered into for a project
24 approved by the Commission during the period of service of the

1 member, nor shall any person be appointed as a member of the
2 Commission if such person is interested, directly or indirectly, in
3 a contract entered into for a project approved prior to the
4 appointment. An indirect interest shall include, but not be limited
5 to, an interest of an immediate family member of the member of the
6 Commission or a business with which the member of the Commission is
7 associated.

8 B. A chair of the Commission shall be elected from its
9 membership. Five members of the Commission shall constitute a
10 quorum. Members of the Commission shall serve without compensation,
11 but shall be entitled to reimbursement, pursuant to the State Travel
12 Reimbursement Act, for expenses incurred in the performance of their
13 duties.

14 C. Initial appointments to the Commission shall be made within
15 thirty (30) days of May 28, 1992.

16 D. The Commission shall have the authority to promulgate rules
17 and regulations necessary to implement the provisions of the State
18 Capital Improvement Planning Act.

19 E. The Office of Management and Enterprise Services, with the
20 advice and assistance of the Deputy Treasurer for Debt Management
21 and the Oklahoma Capitol Improvement Authority, shall provide
22 staffing for the Commission and other such assistance as the
23 Commission may require.
24

1 F. 1. ~~The Commission shall prepare each year an annual capital~~
2 ~~plan budget and a state capital plan for addressing state capital~~
3 ~~facility needs for the next ensuing eight (8) years~~ The Commission
4 shall develop and adopt the following five-year plans to provide for
5 allocations and expenditures of the Oklahoma Capital Assets
6 Maintenance and Protection Fund (OCAMP Fund) as follows:

7 a. the OCAMP Higher Education Five-year Plan, for the
8 maintaining and repairing of state-owned properties
9 and for addressing facility needs of public
10 institutions of higher learning,

11 b. the OCAMP Tourism and Recreation Five-year Plan, for
12 the maintaining and repairing of properties and for
13 addressing facility needs of state parks operated by
14 the Oklahoma Tourism and Recreation Department, and

15 c. the OCAMP State Five-year Plan, for the maintaining
16 and repairing of all state-owned properties and for
17 addressing facility needs of the state.

18 2. The Oklahoma State Regents for Higher Education and each
19 state governmental entity as defined in Section 695.3 of this title
20 shall cooperate with the Commission in the preparation of the ~~state~~
21 ~~plan~~ five-year plans. ~~Each year, on or about December 1, the plan~~
22 ~~shall be submitted to the Governor, Speaker of the House of~~
23 ~~Representatives and President Pro Tempore of the Senate. The Long-~~

1 ~~Range Capital Planning Commission shall annually update the eight-~~
2 ~~year plan.~~

3 3. The Commission shall update each five-year plan no less
4 often than biennially. Upon the adoption of such plans and upon
5 each update to such plans, a report detailing such plans shall be
6 electronically submitted to the Governor, the President Pro Tempore
7 of the Senate, and the Speaker of the House of Representatives.

8 4. The Office of Management and Enterprise Services shall
9 perform routine services to support the ~~eight-year plan~~ five-year
10 plans, including, but not limited to, agency-level planning, real
11 estate services, construction services and facility operations as
12 provided by law.

13 5. For fiscal year 2029, the Commission shall allocate Oklahoma
14 Capital Assets Maintenance and Protection Fund monies received to
15 such five-year plans in the following proportions:

16 a. the OCAMP Higher Education Five-year Plan shall be
17 allocated forty-five percent (45%) of such monies for
18 the following:

19 (1) twenty percent (20%) of those monies allocated
20 shall be for four-year colleges and universities
21 receiving a Research Colleges and Universities
22 designation from the Carnegie Classification of
23 Institutions of Higher Education to be further
24 allocated as follows:

1 (a) fifty percent (50%) for those colleges and
2 universities defined as a historically black
3 college or university pursuant to the
4 federal Higher Education Act of 1965, as
5 amended, and

6 (b) fifty percent (50%) of those monies
7 allocated shall be for other colleges and
8 universities,

9 (2) thirty-five percent (35%) of those monies
10 allocated shall be for two-year institutions of
11 higher education within The Oklahoma State System
12 of Higher Education, and

13 (3) forty-five percent (45%) of those monies
14 allocated shall be for all four-year colleges and
15 universities except four-year colleges and
16 universities receiving a Research Colleges and
17 Universities designation from the Carnegie
18 Classification of Institutions of Higher
19 Education,

20 b. the OCAMP Tourism and Recreation Five-year Plan shall
21 be allocated ten percent (10%) of such monies, and

22 c. the OCAMP State Five-year Plan shall be allocated
23 forty-five percent (45%) of such monies.
24

1 ~~2.~~ 6. In addition to the requirements set forth in Section
2 901.1 of this title, the ~~capital plan~~ five-year plans should:

- 3 a. supplement and integrate, not replace, existing
4 capital planning processes,
- 5 b. assess long-term needs for capital facilities to
6 support state government needs as determined by the
7 Commission,
- 8 c. review and assess the inventory of capital facilities
9 held by the state, and make recommendations on
10 reallocation, reuse or liquidation of properties for
11 incorporation into the ~~annual capital plan~~ five-year
12 plans,
- 13 d. include a projection of economic and demographic
14 trends likely to influence the needs of state
15 government during the ~~eight-year~~ five-year period,
- 16 e. address agency strategic facility plans for new,
17 improved, renovated, or expanded capital facilities or
18 facilities that should be reallocated or liquidated,
- 19 f. include estimates of life cycle costs for new and
20 substantially expanded or renovated facilities,
- 21 g. evaluate the effectiveness of planning processes at
22 the agency level to account for all capital facility
23 costs for incorporation into the ~~annual capital budget~~
24 five-year plans,

- 1 h. account for projections of debt service and revenues
2 available from general obligation bonds and other
3 sources, including, but not limited to, the
4 ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma
5 Capital Assets Maintenance and Protection Fund,
6 i. analyze the capacity of the state to incur debt or
7 finance public capital facilities,
8 j. include a comprehensive listing of all capital
9 expenditures of the state which the Commission
10 recommends be undertaken or continued for any state
11 agency in the next two (2) fiscal years, together with
12 information as to the effect of such capital projects
13 on future operating expenses of the state, and with
14 recommendations as to the priority of such capital
15 projects and the means of funding them,
16 k. forecast the requirements for capital projects of
17 state agencies for the ~~eight-year~~ five-year period and
18 for such additional periods, if any, as may be
19 necessary or desirable for adequate presentation of
20 particular capital projects, and include a schedule
21 for the planning and implementation or construction of
22 such capital projects,
23 l. set forth a proposed itemized budget for the next
24 ~~fiscal year~~ two (2) fiscal years of recommended

1 capital expenditures inclusive of all funding sources,
2 for each agency, including facility rent and lease
3 payments, energy and utility expenditures, operations
4 and maintenance, capital improvements and capital
5 development projects as necessary to optimize and
6 preserve the state's capital assets,

7 m. include the findings of the Oklahoma State Government
8 Asset Reduction and Cost Savings Program and the
9 indexing of the most necessary capital improvements to
10 the expenditure of funds from the ~~Maintenance of State~~
11 ~~Buildings Revolving Fund~~ Oklahoma Capital Assets
12 Maintenance and Protection Fund, and

13 n. include such other information as the Commission deems
14 relevant to its duties, and

15 ~~o. include findings of the Oklahoma State Government~~
16 ~~Asset Reduction and Cost Savings Program and the~~
17 ~~indexing of the most necessary capital improvements to~~
18 ~~the expenditure of funds from the Maintenance of State~~
19 ~~Buildings Revolving Fund.~~

20 G. The ~~capital plan budget~~ five-year plans shall include, for
21 each expenditure and class of expenditures, the capital facility
22 costs to be incurred during the next ~~ensuing fiscal year~~ two (2)
23 fiscal years, inclusive of the annual operating and maintenance
24 costs of such facilities and a schedule of depreciation calculated

1 in accordance with the principles and standards of capital budgeting
2 authorized by subsection H of this section.

3 H. The Commission, with the assistance of the Office of
4 Management and Enterprise Services, shall prepare and publish rules
5 and regulations that set forth principles and standards for capital
6 planning and budgeting to be used by state agencies. The rules and
7 regulations shall set forth definitions of relevant terms to be used
8 in the capital planning and budgeting processes, establish
9 accounting standards, and establish standards for costs and benefits
10 of public facility investments.

11 I. 1. The Commission, the Office of Management and Enterprise
12 Services, and the Deputy Treasurer for Debt Management may request
13 the assistance of such personnel of any state agency in order to
14 perform their duties pursuant to the State Capital Improvement
15 Planning Act and such agencies shall respond and provide any ~~such~~
16 assistance as may be required. The Commission may use existing
17 studies, surveys, plans, data, and other materials in the possession
18 of any state agency. Each ~~such~~ agency shall make the same available
19 to the Commission so that the Commission may have available to it
20 current information with respect to the capital plans and programs
21 of each ~~such~~ agency.

22 2. The officers and personnel of any state agency may serve at
23 the request of the Commission upon such advisory committees as the
24 Commission may create and such officers and personnel may serve upon

1 such committees without forfeiture of office or employment and with
2 no loss or diminution of the compensation, status, rights, and
3 privileges which they otherwise enjoy.

4 J. The Commission may direct the Oklahoma Capitol Improvement
5 Authority to allocate, budget, and expend, either directly or under
6 the terms of memoranda of understanding lawfully entered into with
7 other state entities, monies from the Oklahoma Capital Assets
8 Maintenance and Protection Fund on any project or item that has been
9 included in an applicable five-year plan authorized under the
10 provisions of the Oklahoma Capital Assets Maintenance and Protection
11 Act for no less than one (1) year.

12 K. This section shall not be applicable to the following or
13 their lands, properties, buildings, funds, or revenue:

- 14 1. The Oklahoma Ordnance Works Authority; and
- 15 2. The Commissioners of the Land Office.

16 ~~K. The Commission shall develop plans, adopt authorizations,~~
17 ~~and fulfill the duties required pursuant to Section 188A of Title 73~~
18 ~~of the Oklahoma Statutes.~~

19 SECTION 8. AMENDATORY 62 O.S. 2021, Section 901.1, is
20 amended to read as follows:

21 Section 901.1. A. The Long-Range Capital Planning Commission
22 shall electronically submit an itemized list of the proposed
23 projects set forth in ~~its annual capital plan~~ the five-year plans,
24 created pursuant to paragraph 1 of subsection F of Section 901 of

1 this title, to the Governor, the President Pro Tempore of the
2 Senate, and the Speaker of the House of Representatives within the
3 first seven (7) legislative days of a regular legislative session
4 following each update required pursuant to paragraph 3 of subsection
5 F of Section 901 of this title. The list shall be in the order of
6 the priority of the projects as determined by the Commission. The
7 submission to such elected officials shall occur upon the same date
8 for purposes of computing the time within which action must be taken
9 as further prescribed by this subsection. The Legislature shall
10 have a period of forty-five (45) calendar days from the date on
11 which the list is submitted to pass a concurrent resolution
12 disapproving any or all of the proposed projects. If the
13 Legislature does not disapprove any proposed project by concurrent
14 resolution by the end of the forty-fifth day following the date upon
15 which the proposed issuance is submitted, the proposed projects
16 shall be deemed to have been approved by the Legislature.

17 B. Upon approval of all or any part of the list of proposed
18 projects required pursuant to subsection A of this section, the
19 Office of Management and Enterprise Services may expend funds in the
20 ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital
21 Assets Maintenance and Protection Fund for approved projects in the
22 order of priority set forth in its ~~annual capital plan~~ five-year
23 plans.

1 C. In the event an emergency has been declared as provided for
2 in Section 130 of Title 61 of the Oklahoma Statutes, and as a result
3 thereof, repair or maintenance of a capital facility held by the
4 state is required, a state agency may submit a request to the
5 Director of the Office of Management and Enterprise Services to
6 substitute the emergency project for any other project or projects
7 of the state agency on the approved current ~~fiscal year's Capital~~
8 ~~Improvement Plan~~ list required pursuant to subsection A of this
9 section, or to add the emergency project if the state agency does
10 not have any projects on the approved current ~~fiscal year's Capital~~
11 ~~Improvement Plan~~ list; provided:

12 1. The Director determines that there are funds available in
13 the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital
14 Assets Maintenance and Protection Fund to cover all or part of the
15 cost of the emergency project; and

16 2. The Director electronically submits information on the
17 emergency project and the cost thereof to the President Pro Tempore
18 of the Senate and the Speaker of the House of Representatives and
19 they approve the substitution within five (5) calendar days of ~~such~~
20 submission.

21 D. The Director has authority to redirect funds within the
22 ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital
23 Assets Maintenance and Protection Fund for emergency projects
24

1 approved by the President Pro Tempore of the Senate and the Speaker
2 of the House of Representatives.

3 SECTION 9. AMENDATORY 62 O.S. 2021, Section 908, as
4 amended by Section 1, Chapter 188, O.S.L. 2023 (62 O.S. Supp. 2025,
5 Section 908), is amended to read as follows:

6 Section 908. A. There is hereby established the Oklahoma State
7 Government Asset Reduction and Cost Savings Program.

8 B. No later than December 31 each year, the Director of the
9 Office of Management and Enterprise Services shall publish a
10 comprehensive report detailing state-owned properties.

11 C. The report mandated in accordance with the provisions of
12 this section shall list the five percent (5%) most underutilized
13 state-owned properties. The report shall describe the value of
14 properties falling within the description in this subsection, assess
15 the potential for purchase should the properties be offered for
16 sale, and describe the impact on local-level tax rolls in the event
17 the properties are purchased by a nongovernmental entity.

18 D. The Director of the Office of Management and Enterprise
19 Services shall promulgate rules establishing procedures by which
20 each state agency, board, commission, and public trust having the
21 state as a beneficiary, excluding those otherwise exempted under
22 Section 327 of Title 61 of the Oklahoma Statutes, shall submit the
23 necessary data to the Office of Management and Enterprise Services
24 for the development of this report.

1 E. State agencies, boards, commissions, and public trusts
2 having the state as a beneficiary shall comply with procedures
3 promulgated pursuant to the terms of this section.

4 F. The report and data collected pursuant to this section shall
5 be published as a data feed on the data.ok.gov website.

6 G. In addition to the requirements of subsection C of this
7 section, the Office of Management and Enterprise Services may make
8 recommendations for the sale of other state-owned properties based
9 upon the value of the property and the potential for net gain for
10 the state based upon the data obtained for the Oklahoma State
11 Government Asset Reduction and Cost Savings Program.

12 ~~H. There is hereby created the Maintenance of State Buildings~~
13 ~~Revolving Fund. The fund shall be a continuing fund, not subject to~~
14 ~~fiscal year limitations, and shall serve as the depository for~~
15 ~~proceeds from the sale of state-owned properties pursuant to the~~
16 ~~Oklahoma State Government Asset Reduction and Cost Savings Program.~~
17 ~~The fund shall further consist of monies appropriated thereto and~~
18 ~~other funds designated for deposit therein. All monies accruing to~~
19 ~~the credit of the fund are hereby appropriated and may be expended~~
20 ~~exclusively for maintaining and repairing state-owned properties and~~
21 ~~buildings pursuant to the procedures set forth in Section 901.1 of~~
22 ~~Title 62 of the Oklahoma Statutes and for acquisition of information~~
23 ~~technology tools or resources that state agencies, boards,~~
24 ~~commissions, and public trusts having the state as a beneficiary~~

~~shall use in carrying out their obligations in accordance with this act. The total expenditure for information technology resources shall not exceed One Hundred Thousand Dollars (\$100,000.00). Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment. Expenditures from the Maintenance of State Buildings Revolving Fund shall be detailed in a data feed and made available through the data.ok.gov web portal.~~

~~I.~~ The Director of the Office of Management and Enterprise Services shall notify entities found by the Office of Management and Enterprise Services to be out of compliance with the reporting provisions of this section in writing.

~~J.~~ I. This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority;
2. The Commissioners of the Land Office; and
3. Institutions comprising The Oklahoma State System of Higher Education, except as to the data reporting requirements in this section.

~~K.~~ J. The report required in subsection B of this section shall include an indication of whether a property is owned by the Oklahoma Historical Society, is listed on the National Register of Historic Places or with the National Trust for Historic Preservation, or is

1 potentially of historical significance. The Office of Management
2 and Enterprise Services shall notify the Oklahoma Historical Society
3 and obtain its approval prior to the sale of any such property.

4 SECTION 10. AMENDATORY Section 2, Chapter 441, O.S.L.
5 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S.
6 Supp. 2025, Section 188B), is amended to read as follows:

7 Section 188B. A. There is hereby created in the State Treasury
8 a revolving fund for the Oklahoma Capitol Improvement Authority to
9 be designated the "Oklahoma Capital Assets Maintenance and
10 Protection Fund" (OCAMP Fund). The fund shall be a continuing fund,
11 not subject to fiscal year limitations, and shall consist of all
12 monies received by the Oklahoma Capitol Improvement Authority
13 ~~eligible under law and~~ directed for deposit to the fund and proceeds
14 from the sale of state-owned properties pursuant to the Oklahoma
15 State Government Asset Reduction and Cost Savings Program. All
16 monies accruing to the credit of the fund are hereby appropriated
17 and, except for the transfer required pursuant to Enrolled Senate
18 Bill No. 1125 of the 2nd Session of the 59th Oklahoma Legislature,
19 may be allocated, budgeted, and expended by the Oklahoma Capitol
20 Improvement Authority as directed by the Long-Range Capital Planning
21 Commission. Such allocations, budgeting, and expenditures shall
22 strictly adhere to the specific terms, limitations, purposes, and
23 requirements described in the directive adopted by the Commission.
24 Expenditures from the fund shall be made upon warrants issued by the

1 State Treasurer against claims filed as prescribed by law with the
2 Director of the Office of Management and Enterprise Services for
3 approval and payment.

4 B. The Oklahoma Capitol Improvement Authority shall be
5 authorized to enter into memoranda of understanding with agencies,
6 departments, and subdivisions of the state as provided by law and as
7 deemed necessary by the Authority to administer expenditures from
8 and allocations and deposits to and from the Oklahoma Capital Assets
9 Maintenance and Protection Fund, provided that such memoranda of
10 understanding do not conflict with or impede the administration of
11 capital projects specifically authorized by law or directed by the
12 Commission. Such memoranda of understanding shall not constitute a
13 legal obligation of this state.

14 C. Limited to the extent required for projects specifically
15 authorized under the provisions of the ~~Oklahoma Capital Assets~~
16 ~~Maintenance and Protection Act~~ State Capital Improvement Planning
17 Act, the Oklahoma Capitol Improvement Authority shall be authorized
18 to:

19 1. Acquire real property together with improvements located
20 thereon and personal property;

21 2. Provide for the construction of ~~improvements to~~ real
22 property and to provide funding for repairs, refurbishments,
23 deferred maintenance, and improvements to real and personal
24 property;

1 3. Hold title to property and improvements as necessary to
2 comply with legal directives and authorizations; and

3 4. Lease, transfer, and otherwise legally dispose of property
4 and improvements as necessary to comply with legal directives and
5 authorizations.

6 D. No later than January 15 annually, the Oklahoma Capitol
7 Improvement Authority shall submit electronically to the Governor,
8 the President Pro Tempore of the Senate, the Speaker of the House of
9 Representatives, the Chair of the Appropriations Committee of the
10 Senate, and the Chair of the Appropriations and Budget Committee of
11 the House of Representatives a report detailing impacts to the
12 balance of the Oklahoma Capital Assets Maintenance and Protection
13 Fund occurring in the prior calendar year, including, but not
14 limited to, all distributions, expenditures, collections, and
15 deposits of the Oklahoma Capital Assets Maintenance and Protection
16 Fund.

17 E. Notwithstanding any provision of law to the contrary, all
18 interest and income derived from deposits to the OCAMP Fund shall be
19 credited to the OCAMP Fund.

20 SECTION 11. AMENDATORY 74 O.S. 2021, Section 61.8, as
21 amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025,
22 Section 61.8), is amended to read as follows:

23 Section 61.8. A. The Long-Range Capital Planning Commission
24 shall work to decrease the amount of property owned by Oklahoma

1 state government, return state-owned property to private sector
2 ownership, better maintain and utilize the state's needed capital
3 assets, and, whenever possible, eliminate the practice of state
4 agencies leasing real property not owned by the state.

5 B. Each year, the Director of the Office of Management and
6 Enterprise Services, at the direction of the Long-Range Capital
7 Planning Commission, shall take action to approve the privatization
8 of state-owned real property as identified pursuant to the Oklahoma
9 State Government Asset Reduction and Cost Savings Program. Proceeds
10 from the liquidation of real properties shall be deposited into the
11 ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital
12 Assets Maintenance and Protection Fund.

13 C. Prior to entering into or renewing a lease for real
14 property, each state agency, board, commission, and public trust
15 having the state as a beneficiary shall receive approval for
16 entering into the lease from the Office of Management and Enterprise
17 Services.

18 D. Prior to making a purchase of real property or constructing
19 a building, each state agency, board, commission, and public trust
20 having the state as a beneficiary shall receive approval for the
21 purchase or construction from the Director of the Office of
22 Management and Enterprise Services; provided, if such purchase or
23 construction is deemed by the Director of the Office of Management
24 and Enterprise Services to be within the authority of the Long-Range

1 Capital Planning Commission, the Director shall not approve the
2 purchase or construction and shall refer the request to the
3 Commission for action.

4 E. Prior to approval or referral pursuant to subsection C or D
5 of this section, the Office of Management and Enterprise Services
6 shall determine if the applicant entity can utilize already existing
7 state-owned real property as an alternative to leasing non-state-
8 owned real property or purchasing or constructing new real property.
9 If such existing state-owned real property is owned by the Oklahoma
10 Historical Society, is listed on the National Register of Historic
11 Places or with the National Trust for Historic Preservation, or is
12 potentially of historical significance, the Office of Management and
13 Enterprise Services shall notify the Oklahoma Historical Society and
14 obtain its approval prior to approving an application for its reuse.

15 F. No state agency, board, commission, or public trust having
16 the state as its beneficiary shall transfer any real property owned
17 by the agency, board, commission, or trust to any other state
18 agency, board, commission, state beneficiary trust, or any public or
19 private entity unless the transfer is first approved by the Long-
20 Range Capital Planning Commission. Any transfer made without the
21 prior approval of the Long-Range Capital Planning Commission as
22 required by this subsection may be reversed by the Long-Range
23 Capital Planning Commission and if a transfer is reversed the
24 agency, board, commission, state beneficiary trust, or other state

1 government entity to which the real property has been impermissibly
2 transferred shall take such actions to convey the subject property
3 to the entity from which the asset was acquired not later than
4 thirty (30) days from the date an order for such transfer is entered
5 by the Long-Range Capital Planning Commission. The Commission shall
6 not approve any transfer unless proceeds from the sale shall be
7 deposited within the ~~Maintenance of State Buildings Revolving Fund~~
8 ~~as established by Section 908 of Title 62 of the Oklahoma Statutes~~
9 Oklahoma Capital Assets Maintenance and Protection Fund.

10 G. By February 1 of each year, the Office of Management and
11 Enterprise Services shall publish a report for the preceding
12 calendar year listing the parcels of previously state-owned property
13 sold, detailing the reduction in the amount of space leased by the
14 state, ~~describing the source of funds and expenditures from the~~
15 ~~Maintenance of State Buildings Revolving Fund, and showing the~~
16 ~~manner in which deferred maintenance needs are being met.~~ The
17 report shall be electronically provided to the Governor, Speaker of
18 the House of Representatives, and President Pro Tempore of the
19 Senate and placed on the documents.ok.gov web portal.

20 H. This section shall not be applicable to the following or
21 their lands, properties, buildings, funds, or revenue:

- 22 1. The Oklahoma Ordnance Works Authority;
- 23 2. The Commissioners of the Land Office;
- 24 3. The Department of Transportation;

1 4. The Oklahoma Turnpike Authority; and

2 5. The Grand River Dam Authority.

3 I. The Director of the Office of Management and Enterprise

4 Services may make recommendations to the Long-Range Capital Planning

5 Commission for liquidation of underutilized properties that have

6 environmental issues, create a liability for the state, or create

7 expenses that make the continued ownership of the underutilized

8 property undesirable and the property has been offered through two

9 public auctions or sealed bids and no viable bids were received. If

10 the Long-Range Capital Planning Commission approves the liquidation

11 of the property, the Office of Management and Enterprise Services

12 may accept a bid of less than ninety percent (90%) of the appraised

13 value in accordance with Section 327 of Title 61 of the Oklahoma

14 Statutes.

15 SECTION 12. NEW LAW A new section of law not to be

16 codified in the Oklahoma Statutes reads as follows:

17 Upon the effective date of this act, any remaining, unencumbered

18 balance in the Maintenance of State Buildings Revolving Fund shall

19 be transferred to the Oklahoma Capital Assets Maintenance and

20 Protection Fund.

21 SECTION 13. RECODIFICATION Section 2, Chapter 441,

22 O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73

23 O.S. Supp. 2025, Section 188B), and as amended by Section 10 of this

24 act, shall be recodified as Section 901.2 of Title 62 of the

1 Oklahoma Statutes, unless there is created a duplication in
2 numbering.

3 SECTION 14. REPEALER Section 3, Chapter 441, O.S.L.
4 2024, as amended by Section 2, Chapter 439, O.S.L. 2025 (73 O.S.
5 Supp. 2025, Section 188A), is hereby repealed.

6 SECTION 15. This act shall become effective July 1, 2026.

7 SECTION 16. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 Passed the Senate the 23rd day of March, 2026.

12

13

Presiding Officer of the Senate

14

15 Passed the House of Representatives the ____ day of _____,
16 2026.

17

18

Presiding Officer of the House
of Representatives

19

20

21

22

23

24